

S.N. Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 24 January 2019 · WRIT - C No. 2679 of 2019 · **Writ dismissed as not maintainable while CGRF seized; Forum directed to decide the pending para 7.10 application expeditiously.**

HEADNOTE

A writ seeking quashing of an electricity demand is not maintainable where the consumer is already pursuing a paragraph 7.10 Supply Code, 2005 complaint before the Consumer Grievance Redressal Forum for the same bill. The Division Bench dismissed the petition as a parallel proceeding and directed the CGRF, Kanpur, to decide Case No. 2 of 2019 in accordance with law, preferably within two months.

FACTUAL SUMMARY

S.N. Singh filed a writ petition in the Allahabad High Court seeking quashing of a demand notice dated 4 December 2018. He disputed electricity bills issued to him from time to time and contended that a bill of Rs. 12,84,859 was highly inflated. He had already, on 14 January 2019, applied under paragraph 7.10 of the Electricity Supply Code, 2005 to the Consumer Grievance Redressal Forum, Kanpur, where the grievance was registered as Case No. 2 of 2019, and was pursuing that remedy.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

parallel-writ-pending-cgrf

HOLDING

Where the consumer has already invoked paragraph 7.10 of the Electricity Supply Code, 2005 before the Consumer Grievance Redressal Forum against a disputed electricity bill, a parallel writ petition seeking quashing of the same demand is not maintainable. The writ was dismissed; the CGRF was directed to decide the pending application in accordance with law, preferably within two months of receipt of a certified copy.

¶ 1

PRINCIPLE TAGS

clause-7.10-forum-ombudsman-route-for-billing-grievances A writ seeking quashing of an electricity demand is not maintainable where the consumer is already pursuing a paragraph 7.10 Supply Code, 2005 complaint before the Consumer Grievance Redressal Forum for the same bill.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICE DATED 4.12.2018 OR THE BILL OF RS. 12,84,859 WAS INFLATED OR LIABLE TO BE QUASHED ON MERITS.

¶ 1